Benjamin D. Summers <bsummers@adagiollc.com>

FW: Confirmation of Contract Training Exemption: Adagio Institute, Inc.

1 message

nathan.adams@hklaw.com <nathan.adams@hklaw.com> Mon, Jul 13, 2026 at 1:23 PM
To: "Benjamin D. Summers" <bsummers@adagiollc.com>
Cc: "Richard.Smith@hklaw.com" <Richard.Smith@hklaw.com>

fyi. naa

From: Giunta, Eric <Eric.Giunta@fldoe.org>
Sent: Monday, July 13, 2026 2:13 PM
To: Adams, Nathan A (TAL - X35640, MIA - X27443) <nathan.adams@hklaw.com>
Cc: Hurst1, Tiffany <Tiffany.Hurst1@fldoe.org>
Subject: Confirmation of Contract Training Exemption: Adagio Institute, Inc.

[External email]

Dear Dr. Adams,

Thank you for your recent email and for providing a copy of the fully executed Contract Training Agreement (herein the Agreement) between **Adagio Institute, Inc.** (herein AI) and **Adagio Capital Management, LLC** (herein ACM). We appreciate the opportunity to review this matter in connection with your client's request for written confirmation regarding the applicability of the contract training exemption under Florida law.

You have asked the Florida Commission for Independent Education to confirm in writing that the arrangement described in the Agreement qualifies as "contract training" within the meaning of Section 1005.02(6), Florida Statutes, such that AI is not required to obtain licensure from the Commission pursuant to Section 1005.06(1)(d), Florida Statutes, for offering its **Ph.D. program in Mathematical Physics with Concentration in Stochastic Quantum Theory** (herein the program) exclusively to eligible employees of the ACM companies under the terms of the Agreement. You have further indicated that this confirmation is needed to support AI's anticipated accreditation efforts and for sharing with participating students and employees as appropriate. On behalf of Executive Director Hurst, who is copied to this letter, I write to respond to your request.

After careful review of the Agreement and the representations set forth in your email, **the Commission confirms that the program as structured in the Agreement meets the statutory definition of "contract training" in Section 1005.02(6), Florida Statutes**. Specifically:

- The instruction is provided pursuant to a written contract (the Agreement) between AI, as the independent contractor/provider, and ACM, as the engaging entity;

- all tuition and fees are paid entirely by ACM;

- instruction is provided exclusively to bona fide employees of the ACM companies (ACM and its subsidiaries and affiliates);

- participants are identified and selected solely by ACM in accordance with ACM's minimum eligibility requirements and AI's academic requirements; AI does not recruit participants; and

- the program is not advertised or made available to the general public.

Because AI's Florida-related activity under this arrangement consists solely of offering a contract training program meeting the foregoing criteria, AI qualifies as an "institution that offers only . . . contract training programs or courses" within the meaning of Section 1005.06(1)(d), Florida Statutes. Accordingly, for purposes of this specific arrangement, **Adagio Institute is not under the jurisdiction or purview of the Commission and is not required to obtain a license to operate in this state with respect to the program described in the Agreement**.

This confirmation is expressly conditioned upon and limited by the following:

- The program continues to be offered exclusively to bona fide employees of the ACM companies who are selected by ACM and who satisfy the eligibility criteria set forth in the Agreement;

- ACM remains solely responsible for participant selection, and AI does not engage in recruitment, advertising, or solicitation of students for the program outside the ACM companies;

- all fees, tuition, and other charges continue to be paid entirely by ACM or the ACM companies, with no direct financial obligation on participating employees;

- AI does not expand the program (or offer any other programs or courses) to individuals who are not employees of the ACM Companies, or otherwise alter the delivery model, without first obtaining appropriate licensure from the Commission or confirmation that another exemption applies; and

- the arrangement remains consistent with the terms of the Agreement as executed on or about June 24, 2026, including the acknowledgments in Section 4 regarding AI's status as an unlicensed and unaccredited institution and the potential non-transferability of credits.

The parties have acknowledged in Section 4 of the Agreement that AI is not licensed by the Commission or accredited and that students may not be able to transfer credit from AI courses to another institution. While the Agreement does not expressly require AI to provide these acknowledgments directly to participating students, the Commission strongly encourages AI to ensure that all employees enrolled in the program receive clear, written notice of AI's unlicensed and unaccredited status, as well as the potential non-transferability of credits, prior to or at the time of enrollment. Such disclosures would be consistent with sound practice for exempt contract training arrangements.

Please understand that this letter constitutes the Commission's confirmation based solely on the facts, representations, and documents provided to date. It is not a license, an accreditation, an endorsement of the academic quality or content of the program, or a determination regarding any other legal or regulatory requirements that may apply to AI, ACM, or the program (including, without limitation, any requirements of other states, accrediting bodies, or federal agencies). The Commission reserves the right to revisit this matter if material facts change, if additional information becomes available, or if the arrangement is modified in any material respect.

This confirmation is provided in direct response to your request and may be shared with AI, its accreditation agency, and participating students/employees as needed to document the exempt status of the current arrangement. Should you or your client have any questions or require further clarification, please do not hesitate to contact me, even as I remain

Yours most sincerely,

Eric Salvatore Giunta

Commission General Counsel

Florida Commission for Independent Education

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From: nathan.adams@hklaw.com <nathan.adams@hklaw.com>
Sent: Wednesday, June 24, 2026 6:29 PM
To: Giunta, Eric <Eric.Giunta@fldoe.org>
Subject: Adagio Institute

Dear Eric,

Hope you had some excellent time off. We spoke recently about my client Adagio Institute, Inc., a Texas nonprofit corporation (AI), which wants to begin offering a partially on-line mathematical physics Ph.D. program from Florida to those who work for Adagio Capital Management, LLC, a Florida limited liability company, and its subsidiaries and affiliates (the ACM Companies). The ACM Companies have found it difficult to recruit employees with these educational credentials to undertake their financial management and other activities. To resolve the problem, the ACM Companies are turning to AI to create a pipeline of talent. ACM will compensate AI to provide the education; students/workers will not have to pay tuition.

We discussed the possibility that this arrangement fits within the contract training program exemption to FCIE jurisdiction. F.S. 1005.02(6), 1005.06(1)(d). A copy of the contract training agreement between AI and ACM is attached. We have advised AI that if it eventually wants to educate any not associated with the ACM Companies, AI will need to become licensed. Can you confirm in writing whether this arrangement qualifies for the exemption, meaning FCIE licensure is not required?

AI hopes eventually to seek accreditation and will need written confirmation of AI's exemption for accreditation and other purposes. AI may also need to share the written confirmation with students.

Thank you.

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